



U.S. Department  
of Transportation

Research and  
Special Programs  
Administration

SEP 17 1997

400 Seventh Street, S.W.  
Washington, D.C. 20590

DOT-E 10020  
(FOURTH REVISION)

EXPIRATION DATE: August 31, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. **GRANTEE:** Allwaste, Inc.  
Houston, TX

(See Appendix A to this document for a list of additional grantees)

2. **PURPOSE AND LIMITATION:** This exemption authorizes the transportation in commerce of certain corrosive solids or flammable solids in a non-DOT specification container. This exemption provides no relief from any regulation other than as specifically stated herein.
3. **REGULATORY SYSTEM AFFECTED:** 49 CFR Parts 106, 107 and 171-180.
4. **REGULATIONS FROM WHICH EXEMPTED:** 49 CFR 173.124, 173.136, 173.151, 173.154, 173.240.
5. **BASIS:** This exemption is based on the application of Allwaste, Inc. dated June 16, 1997, submitted in accordance with 49 CFR 107.109.
6. **HAZARDOUS MATERIALS (49 CFR 172.101):**

| Hazardous materials description<br>-- proper shipping name | Hazard<br>Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
|------------------------------------------------------------|------------------------------|-------------------------------|------------------|
| Waste corrosive solids *                                   | 8                            | As<br>Approp.                 | II or<br>III     |
| Waste flammable solids *                                   | 4.1                          | As<br>Approp.                 | II or<br>III     |

\*NOTE: Authorized for packaging under 173.240

SEP 17 1997

7. PACKAGING AND SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-DOT specification roll-on/roll-off container designed and constructed in accordance with Modern, Inc. drawing number C-SALE-25, dated October 8, 1987, or May Fabricating Co., Inc. Drawing number 2-0489, dated 3/13/86, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). Maximum volumetric capacity is 40 cubic yards. Tank material is 3/16 inch or 1/4 inch ASTM A36 or equivalent carbon steel. Each container must meet the requirements of 49 CFR 173.24. Containers may have a fully opening head which must be secured during transportation with ratchet binders at all specified points as described in drawings and specifications submitted with the petitioner's application and on file with the OHMEA. A fully opening head must be equipped with a gasket of efficient material which will not be deteriorated by the contents of the container. Lading must be top loaded and top or end discharged.

8. SPECIAL PROVISIONS:

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. MARKING - Each container must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 10020."

d. Materials must be certified in writing to be solid material in accordance with ASTM D-4359-84, "Standard Test Method for Determining Whether a Material is a Liquid or Solid." Also, these materials must be certified in writing to not contain any free liquids as determined by "Test Methods for Evaluating Solid Waste, Physical/Chemical Methods, "EPA Publication SW-846, Update II.

e. The container must be secured to the vehicle in accordance with 49 CFR Parts 393.100 to 393.106.

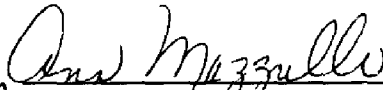
- f. Shipments must originate at hazardous waste sites and be destined for disposal facilities.
- g. Motor carriers operating under the terms of this exemption must have a "Satisfactory" or "Conditional" safety rating as prescribed in 49 CFR Part 385.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
  - o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

**REPORTING REQUIREMENTS:** The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued at Washington, D.C.:

*for*   
\_\_\_\_\_  
Alan I. Roberts

Associate Administrator  
for Hazardous Materials Safety

SEP 17 1997

\_\_\_\_\_  
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

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